



File No.: EXP202314119

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 28, 2023, a complaint was filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U., with NIF A80907397 (hereinafter, the complained party).

The reasons for the complaint are as follows:

Commercial calls on September 26, 2023, to line ***PHONE.1 registered in the Robinson List, made from line ***PHONE.2 where the interlocutor indicates calling on behalf of the complained party and the complainant indicates being registered in the Robinson List and their opposition to receiving these calls.

Along with the notification, the following is provided:

- Certificate of registration in the Robinson List since 09/16/2022,
- Invoice proving ownership of the line with ***COMPANY.1,
- Screenshot and recording of the call.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The complaint was forwarded to the Association for the Self-Regulation of Commercial Communication on October 11, 2023, and a response was received on November 23, 2023, informing that the complainant has expressed their disagreement with the response from the complained party, which states:

“(...) According to the available information... the CNMC, the calling number previously indicated belongs to the following operator; COLT TECHNOLOGY SERVICES, S.A. UNIPERSONAL. Vodafone did not provide your data.

Furthermore, after conducting the necessary checks, we have verified that the complainant's telephone lines... are listed in the official Robinson list of ADigital... and in Vodafone's internal Robinson list... they have been included as of October 20, 2022, and October 17, 2023.

From Vodafone, it has been checked whether the indicated calling number in your writing appears in our database with the telephone numbers that our collaborators use to make solicitation calls. To this end, we have verified that it does not appear in our database of numbers associated with our collaborators who make solicitation calls on behalf of Vodafone. Therefore, it does not seem possible to relate the receipt of the calls that you highlight... in your complaint with Vodafone.”

THIRD: On December 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

By means of a diligence, a search of the complained line was provided in listaspam.com and cleverdialer.com.

The ownership of the calling line was investigated through its operator COLT TECHNOLOGY SERVICES, S.A.U., which reports on the entity ACTIVO TI S.L. This entity, in turn, reports on the assignment of the line from June 28, 2023, to the reseller NET VOISS SAC with R.U.C (Peruvian NIF) 20545529719 and address at Avda. Petit Thouars, 1775 Of. 901 Edif. Empresarial “El Almirante” 15046 District of Lima (Peru) represented by the company TECH TELECOM LEGAL SERVICES, S.L.

with NIF B42981118 and address located at Calle Andrés Mellado, number 31 - Local 18, 28015 Madrid.

ACTIVO TI S.L. provides the contract with NET VOISS SAC dated June 27, 2023, and a copy of the registration of NET VOISS SAC in the CNMC Operators Register dated September 20, 2021, where TECH TELECOM LEGAL SERVICES, S.L. is listed as the legal representative and address for notification purposes TECH TELECOM LEGAL SERVICES, S.L., Calle Andrés Mellado, number 31 - Local 18, 28015 Madrid, for activities with national coverage scope of:

- Resale of fixed telephone service - indirect access
- Resale of nomadic voice service - resale of nomadic voice service

TECH TELECOM LEGAL SERVICES, S.L., in turn, informs that the holder/subscriber is MIDAS SOLUTIONS CENTER E.I.R.L., with R.U.C (Peruvian NIF) 20605357734 and registered office: CAL. AREQUIPA, NRO. 499 PIURA CERCADO-PIURA – PERU.

TECH TELECOM informs that the investigated line is used through SIP trunking connection (session initiation protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP).

The VoIP technology

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is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service of the line is provided. There is no physical installation at a residence; there is a connection to voice services via the Subscriber's internet so that the voice signal is sent digitally over their IP network.

TECH TELECOM provides the IP Telephony Service Provision Contract dated July 6, 2022, signed by both parties, NET VOISS SAC and MIDAS SOLUTIONS CENTER E.I.R.L. (THE CLIENT), along with its Annex listing the contracted lines, which includes line ***TELEPHONE.2 (contracted on July 14, 2023), where the address is specified and includes registration in the Operators Register of the CNMC of NET VOISS S.A.C. for the resale of telephony (Authorization) dated September 20, 2021, and provides a copy of the CNMC resolution of the same date stating the following:

“In accordance with Article 14 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the entity is obliged to communicate electronically with the CNMC, both regarding the submission of documents and the receipt of administrative notifications. Consequently, I must inform you that in compliance with Article 14.2.a) of the aforementioned Law, the notification of the indicated Resolution has been carried out through electronic means by appearing at the electronic headquarters of the CNMC (link (...)).”

The aforementioned contract, in its NINTH CLAUSE - OBLIGATIONS OF THE CLIENT, states the following:

THE CLIENT, by signing this Contract, agrees to (the underlining is by the Agency):

“ ...

e. In the event that THE CLIENT contracts Spanish telephone lines and/or their geographic numbering, they must have a legal address within the geographic area of the contracted numbering, being necessary to prove it to NET VOISS - in order for it to justify it at the request of the Operator - due to the existence of a Spanish legal obligation.

f. Assume full legal responsibility for the Databases of users and/or related parties that they use for commercial calls.”

In Annex 3 of the contract, the Purchase Order is recorded where the claimed line does not appear, but it does appear in Annex 3 signed on July 14, 2023:

“Geographic Numbering” ***TELEPHONE.2. Start date July 14, 2023.

The line has not been canceled or had its ownership changed as of September 26, 2023.

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The line has not been donated/resold prior to or after September 26, 2023.

Information was requested from MIDAS SOLUTIONS CENTER E.I.R.L. on February 8, 2024, via postal mail to the address in Peru, which was delivered on February 17, 2024, and information was requested electronically on February 9 and February 27, 2024, to two different email addresses listed in the contract and on the website www.midassolutioncenter.com, respectively, (...) and info@midassolutioncenter.com; and on April 10, 2024, a reminder was sent to the second of them without having received a response.

An electronic notification was made on March 8, 2024, to TECH TELECOM LEGAL SERVICES, S.L., which represents NET VOISS SAC, regarding the contract with MIDAS, Ninth Clause, sections e and f, and to provide the legal address within the geographic area of the contracted numbering, including the numbering ***TELEPHONE.2, of the MIDAS subscriber along with the Spanish legal obligation that requires it.

This notification is recorded as expired on March 19, 2024. A reminder was sent by postal mail to the address listed at Calle Andrés Mellado, number 31 - Local 18, 28015 Madrid on March 20, 2024, and is recorded as Returned to Origin due to unknown reasons on April 2, 2024, but it was delivered electronically on April 4, 2024.

A reminder was sent electronically on April 4, 2024, and is recorded as delivered the same day.

A reminder was sent via email on April 4, 2024, to legal@tech-telecomlegalservices.com and is recorded as delivered the same day.

A response was received on April 8, 2024, from TECH TELECOM LEGAL SERVICES, S.L. to the aforementioned email sent on April 4, 2024, indicating that:

“FIRST. As of March 1, 2024, we changed the address of our office from Calle Andrés Mellado, nº 31, Local 18, C.P. 28015, Madrid, to the current address Calle Zurbano, nº 66, Semisótano, C.P. 28010 – Madrid – Spain. While we agreed with the old postal address to have notifications and correspondence collected until May to allow for communication of the new address details, we were not aware that the notification you indicated had arrived and been rejected.

SECOND. The notification resent again electronically on 4/4 has been downloaded, and today, April 8, we have proceeded to respond to the attached request.

THIRD. We provide you with the new postal address and the email account of our Manager for future notifications via electronic means:

TECH TELECOM LEGAL SERVICES, S.L.

Calle Zurbano, nº 66, Semisótano, C.P. 28010 – Madrid – Spain

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Email for notifications: gerencia@tech-telecomlegalservices.com

And they present a second response dated April 8, 2024, where they indicate that:

“SECOND. By means of this document, we inform you that since March 7, 2024, we no longer provide representation for NET VOISS, S.A.C., for the purpose of notifications from the Spanish Agency for Data Protection, with NET VOISS, S.A.C. being responsible for directly receiving notifications from said entity.

THIRD. The address of the registered office of NET VOISS, S.A.C. to which you can direct your request for information is as follows:

Avenida Petit Thouars Nro. 1775 Oficina 901 Lince, Lima – Peru”

Information is requested from NET VOISS SAC on April 10, 2024, by postal mail to the address in Peru without confirmation of delivery. Information is requested via email to the address listed on www.netvoiss.com, info@netvoiss.com on April 10, 2024, and it is confirmed delivered on the same day. A response is received via the aforementioned email on April 17, 2024, indicating that:

"We confirm that the address you indicate in Lima (Peru) is correct, the only postal address we have. The email address you mention is reserved for our commercial activity.

Regarding file EXP202314119, as a courtesy, we have already provided you with all the information we have. Our situation remains exactly the same as you, the Spanish Agency for Data Protection, indicate in the resolution of the Director of the Spanish Agency for Data Protection, of EXP202202005, dated May 24, 2022, on page 4/5: IV Conclusion, paragraphs one and two."

In the cited resolution, it is verified that on the referenced pages it states that:

"Through the actions carried out by this Agency, it has been learned that the calling phone number, on the date the call was made, was assigned to the company NET VOISS S.A.C., which, according to its website, is located in Lima (Peru) and no representative of the company has been located in the European Union.

Therefore, based on the information provided in the previous paragraphs, it should be noted that the Spanish Agency for Data Protection does not have jurisdiction over a company located in Peru."

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I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final Provision Sixth, Section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

The LGTel is applicable to this complaint as the call occurred on September 26, 2023, and the LGTel was published on June 28, 2022, coming into force on June 28, 2023.

III

Conclusion

The investigations carried out by this Agency indicate that the claimed number belongs to MIDAS, a company located in Peru. Information requests have been sent both electronically and by postal mail, and no response has been received to any of the requests sent.

It should be noted that the LGT does not confer the Spanish Agency for Data Protection with jurisdiction over a company located in Peru.

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Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the stated provisions, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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